

Writ Petition No: 7899/2015

Sardar Shujat.

D.P.O. etc.

3. 08.4.2015. Mr. Azar Latif Khan, Advocate for the petitioner.
Mr. Muhammad Nasir Chohan, Assistant Advocate General.
Mr. Muhammad Saim Chaudhry, Advocate for respondent No.4.

The petitioner has assailed the order dated 14.3.2015 regarding first transfer of investigation of case F.I.R. No.952 of 2014 dated 29.9.2014, registered under sections 324, 148, 149 P.P.C., at Police Station City Depalpur, District Okara and case F.I.R. No.954 of 2014 dated 29.9.2014 registered under sections 324, 427, 109, 148, 149 P.P.C., at Police Station City Depalpur, District Okara whereby the investigation of the said case was transferred and entrusted to a team comprising of Inspector Tassawar Ali and Inspector Mushtaq Ahmed.

2. It has been argued by the learned counsel for the petitioner that the impugned order is violative of the provisions of Article 18 (A) of Punjab Police Order (Amendment Act XXI of 2013). It is further argued that the impugned order dated 29.9.2014 passed by respondent No.1 suffers from the principle of “Audi Alteram Partem” as the petitioner had not been provided with any opportunity to present his point of view.

3. Controverting these arguments, the learned counsel for respondent No.4 as well as learned Law Officer have contended firstly that the petitioner had joined the proceedings and the petitioner was heard at length and in this scenario the principle of “Audi Alteram Partem” is not applicable; secondly that the order passed by respondent No.1 was based on the recommendation of District Standing Board and lastly argued that investigation cannot be restricted to the particular individual as the investigation is always carried out in offence and not against particular offender.

4. Heard. Record perused.

5. From the record it reveals that the final report under section 173 Cr.P.C. has yet not been submitted and only interim challans were submitted but till now, no cognizance was taken by the learned trial court. It is also revealed from the record that the District Standing Board for detailed reasons has made recommendations for transfer of the investigation and vide order dated 14.3.2015, the DPO Okara has accorded sanction for transfer of the first investigation, under Article 18 (A) of Punjab Police Order (Amendment) Act XXI of 2013. The re-investigation or further investigation is permissible under law even after submission of challan but before cognizance taken by the learned trial court. The proviso of Article 18 (A) ibid empowered the Head of District Police to change the investigation if the reasons given by the Board are found to be reasonable

and cogent. The District Standing Board had made deliberations and order passed by respondent No.1 shows that he had considered the same and was in agreement with the recommendations. Under Article 18 (A) of Punjab Police Order (Amendment) Act XXI of 2013, respondent No.1 was competent to pass the order for transfer of the investigation in view of the recommendations made by the District Standing Board. The petitioner has joined the proceedings before the District Standing Board which gets report from the attendance sheet enclosed with the comments filed by respondent No.1/DPO. The impugned order does not suffer from any illegality or infirmity.

6. For the reasons supra, this petition is without merits and the same is hereby **dismissed**.

(Aalia Neelum)
Judge

Approved for reporting.

Judge